

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT CM08
Commissioner Sharon M. Anderson
Temporary Judge Catherine Evans

Date: 05/27/2026

Court Room Rules and Notices

#	Case Name	Tentative
1	De Leon – Trust; 30-2022-01266610	MOTION TO DISMISS
2	Garcia – Trust; 30-2025-01471869	DEMURRER Respondent Ulisses Gonzalez’ Demurrer (ROA 30) is OVERRULED. Respondent Ulisses Gonzalez (Respondent) demurs to all causes of action in the petition filed by Jennifer Macy and Elaine G. Rodriguez (collectively Petitioners) on the ground each claim fails to state sufficient facts because the petition does not provide details regarding the alleged individual misconduct by Respondent but, rather, generally alleges misconduct by “RESPONDENTS”—a term defined in the petition as meaning Ulisses and his mother Martha Garcia, who is also a respondent. (Petition at 2:19-25.) The petition includes the following allegations of wrongdoing against the respondents: (1) “[T]he purported TRUST was executed as a direct result of undue influence exerted by RESPONDENTS over DECEDENT.” (ROA 2 at 4:19-21.) (2) “[T]he purported TRUST was to RESPONDENTS’ own benefit and to the detriment of DECEDENT’s children.” (ROA 2 at 4:21-23.) (3) “RESPONDENTS occupied the positions of supportive wife and step-son, respectively, to DECEDENT during his declining physical and mental health. DECEDENT reposed trust and confident in RESPONDENTS during a time of vulnerability, which RESPONDENTS used to influence DECEDENT to execute the TRUST in their favor.” (ROA 2 at 5:18-22.)’ (4) “RESPONDENTS actively procured the purported TRUST as part of a pattern of conduct aimed at gaining control of DECEDENT’s major assets, including real property, personal property,

	financial accounts, and more.” (ROA 2 at 5:26-6:1.) (5) “Despite having actual knowledge in and before 2024 of DECEDENT’s lack of decisional and testamentary capacity . . . RESPONDENTS facilitated the purported TRUST in their favor by convincing, coercing, and/or forcing DECEDENT to sign documents without reading or understanding them, including not only the TRUST but also his will, powers of attorney, and possibly more.” (ROA 2 at 6:2-6.) (6) “RESPONDENTS facilitated the execution of durable powers of attorney for finance and for health care, named MARTHA and/or ULISSES as agents and inserting themselves into decision-making positions regarding DECEDENT’s finances and his health care, thereby rendering DECEDENT dependent upon them for her [sic] day-to-day living.” (ROA 2 at 7:17-20.) (7) “RESPONDENTS utilized their control over DECEDENT’s finances and person to transfer funds from DECEDENT’s accounts to themselves for their own personal benefit and to the detriment of DECEDENT, PETITIONERS, and other heirs.” (ROA 2 at 7:27-8:1.) (8) “RESPONDENTS willfully and intentionally converted the property, sale proceeds, and income to their own personal use to the exclusion of DECEDENT and, following DECEDENT’s death, PETITIONERS.” (ROA 2 at 10:9-12.) “To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff’s proof need not be alleged.” (<i>C.A. v. William S. Hart Union High School Dist.</i> (2012) 53 Cal.4th 861, 872.) As explained by the California Supreme Court: “The complaint in a civil action serves a variety of purposes [citation], of which two are relevant here: it serves to frame and limit the issues [citation] and to apprise the defendant of the basis upon which the plaintiff is seeking recovery [citations]. In fulfilling this function, the complaint should set forth the ultimate facts constituting the cause of action, not the evidence by which plaintiff proposes to prove those facts.” (<i>Committee On Children’s Television, Inc. v. General Foods Corp.</i> (1983) 35 Cal.3d 197, 211–212.) ““[A] plaintiff is required only to set forth the essential facts of his case with reasonable precisions and with particularity sufficient to acquaint a defendant with the nature, source and extent of his cause of action.”” (<i>Foster v. Sexton</i> (2021) 61 Cal.App.5th 998, 1019–1020.) ““[L]ess specificity is required in pleading matters of which the defendant has
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		superior knowledge.” (<i>Thomas v. Regents of the University of California</i> (2023) 97 Cal.App.5th 587, 611.) “A complaint will be upheld “so long as the pleading gives notice of the issues sufficient to enable preparation of a defense.”” (<i>Ibid.</i>) The petition is sufficient to enable Respondent to prepare a defense, particularly because any doubt about what Uliisses is alleged to have done individually can be clarified through discovery. The demurrer is OVERRULED. Petitioners are directed to give notice.
3	Fung – Trust; 30-2026-01548357	MOTION TO EXPUNGE LIS PENDENS Respondent Michelle Fung’s Motion to Expunge Lis Pendens (ROA 51) is CONTINUED for supplemental briefing and further hearing as set forth below. Pursuant to CCP §§ 405.22, 405.23, 405.30, 405.31, 405.34, and 405.38, Respondent Michell Fung (Respondent) seeks an order expunging a lis pendens placed on property commonly known as 2602 W. Castor Street, Santa Ana, CA 92704 (Property) on the grounds Petitioners: (1) do not assert a real property claim against the Property and (2) cannot establish the probable validity of their claim. A lis pendens must be expunged if: (1) the pleading on which the lis <i>pendens</i> is based does not contain a real property claim; or (2) the claimant cannot establish the probable validity of the real property claim(s) by a preponderance of the evidence. (Code of Civ. Proc., §§ 405.31 and 405.32.) The party opposing a motion to expunge has the burden of showing both the existence of a real property claim and the probable validity of that claim. (<i>Kirkeby v. Superior Court</i> (2004) 33 Cal.4th 642, 647; Code of Civ. Proc., § 405.30.) <u>Real property claim.</u> A “real property claim” is one which, if meritorious, would affect title to, or the right to possession of, specific real property; or the use of an easement identified in the pleading. (Code of Civ. Proc., § 405.4.) The allegations of the petition determine whether a “real property claim” is involved; no independent evidence is required. (<i>Urez Corp. v. Superior Court</i> (1987) 190 Cal.App.3d 1141, 1149.)